

Part 6

Simplified Requirements

Division 1—Interpretation

29. Interpretation of Part 6

In this Part, a reference to a prescribed building professional appointed under section 27 includes a prescribed building professional nominated to act in the place of another prescribed building professional under section 4A(5) of the Ordinance.

Division 2—Requirements in respect of Class I Minor Works

30. Documents to be submitted before commencement of class I minor works

Not less than 7 days before the commencement of any class I minor works, the authorized person or registered inspector appointed under section 27 in respect of the works must submit to the Building Authority— (*L.N. 148 of 2011*)

- (a) a notification in the specified form, in which—
 - (i) the person who arranged for the works to be carried out has specified the name of each person appointed as a prescribed building professional under section 27 and as a prescribed registered contractor under section 28 (*appointed person*) in respect of the works;
 - (ii) each appointed person has confirmed the appointment;

- (iii) the authorized person or registered inspector has confirmed the date on which the works are to be commenced; (*L.N. 148 of 2011*)
 - (iv) if the works comprise repairs, alterations or additions to any building, the authorized person or registered inspector and registered structural engineer (if any) appointed under section 27 in respect of the works have certified that, after inspecting the building, they are of the opinion that the building is capable of bearing the loads and stresses which may be increased or altered in any way as a result of the works; and (*L.N. 148 of 2011*)
 - (v) if the works involve the erection of a signboard, the person for whom the signboard is to be erected has provided the particulars of the person as required by the Authority;
- (b) photographs showing the physical condition of the premises where the works are to be carried out;
 - (c) prescribed plans and details of the works; and
 - (d) if required by the technical memorandum, a supervision plan.

31. Documents to be submitted on completion of class I minor works other than demolition works

Within 14 days after the date of completion of any class I minor works other than demolition works, the authorized person or registered inspector appointed under section 27 in respect of the works must submit to the Building Authority— (*L.N. 148 of 2011*)

- (a) if the works as completed are different from those shown in the prescribed plans and details referred to in

section 30(c), the revised prescribed plans and details showing the works as completed;

(b) photographs showing the works as completed; and

(c) a certificate in the specified form, in which—

- (i) each prescribed building professional appointed under section 27 and the prescribed registered contractor appointed under section 28 in respect of the works have certified that the works have been carried out in accordance with the Ordinance and the prescribed plans and details referred to in paragraph (a) or section 30(c);
- (ii) the authorized person or registered inspector has confirmed the date on which the works were completed; (*L.N. 148 of 2011*)
- (iii) the authorized person or registered inspector has certified that the works are, in the opinion of the person or inspector, structurally safe; (*L.N. 148 of 2011; L.N. 182 of 2011*)
- (iv) if a registered structural engineer has been appointed under section 27 in respect of the works, the engineer has certified that the works are structurally safe in the opinion of the engineer; and
- (v) if a registered geotechnical engineer has been appointed under section 27 in respect of the works, the engineer has certified that the works are geotechnically safe in the opinion of the engineer.

32. Documents to be submitted on completion of class I minor works that are demolition works

Within 14 days after the date of completion of any class I minor works that are demolition works, the authorized person or

registered inspector appointed under section 27 in respect of the works must submit to the Building Authority— (*L.N. 148 of 2011*)

- (a) if the works as completed are different from those shown in the prescribed plans and details referred to in section 30(c), the revised prescribed plans and details showing the works as completed;
- (b) photographs showing the works as completed; and
- (c) a certificate in the specified form, in which—
 - (i) each prescribed building professional appointed under section 27 and the prescribed registered contractor appointed under section 28 in respect of the works have certified that the works have been carried out in accordance with the Ordinance and the prescribed plans and details referred to in paragraph (a) or section 30(c);
 - (ii) the authorized person or registered inspector has confirmed the date on which the works were completed; (*L.N. 148 of 2011*)
 - (iii) the authorized person or registered inspector has certified that any land or street affected by the works has an adequate margin of safety and any structure remaining on the premises is, in the opinion of the person or inspector, structurally safe; (*L.N. 148 of 2011; L.N. 182 of 2011*)
 - (iv) if a registered structural engineer has been appointed under section 27 in respect of the works, the engineer has certified that any land or street affected by the works has an adequate margin of safety and any structure remaining on the premises is structurally safe in the opinion of the engineer; and

- (v) if a registered geotechnical engineer has been appointed under section 27 in respect of the works, the engineer has certified that any land or street affected by the works has an adequate margin of safety and any structure remaining on the premises is geotechnically safe in the opinion of the engineer.

Division 3—Requirements in respect of Class II Minor Works

33. Documents to be submitted before commencement of class II minor works

Not less than 7 days before the commencement of any class II minor works, the prescribed registered contractor appointed under section 28 in respect of the works must submit to the Building Authority—

- (a) a notification in the specified form, in which—
 - (i) the person who arranged for the works to be carried out has specified the contractor as the prescribed registered contractor appointed under section 28 in respect of the works;
 - (ii) the contractor has confirmed the appointment and the date on which the works are to be commenced;
 - (iii) if the works comprise repairs, alterations or additions to any building, the contractor has certified that, after inspecting the building, the contractor is of the opinion that the building is capable of bearing the loads and stresses which may be increased or altered in any way as a result of the works; and

- (iv) if the works involve the erection of a signboard, the person for whom the signboard is to be erected has provided the particulars of the person as required by the Authority;
- (b) photographs showing the physical condition of the premises where the works are to be carried out; and
- (c) prescribed plans and details of the works.

34. Documents to be submitted on completion of class II minor works other than demolition works

Within 14 days after the date of completion of any class II minor works other than demolition works, the prescribed registered contractor appointed under section 28 in respect of the works must submit to the Building Authority—

- (a) if the works as completed are different from those shown in the prescribed plans and details referred to in section 33(c), the revised prescribed plans and details showing the works as completed;
- (b) photographs showing the works as completed; and
- (c) a certificate in the specified form, in which the contractor—
 - (i) has certified that the works have been carried out in accordance with the Ordinance and the prescribed plans and details referred to in paragraph (a) or section 33(c);
 - (ii) has confirmed the date on which the works were completed; and
 - (iii) has certified that the works are structurally safe in the opinion of the contractor.

35. Documents to be submitted on completion of class II minor

works that are demolition works

Within 14 days after the date of completion of any class II minor works that are demolition works, the prescribed registered contractor appointed under section 28 in respect of the works must submit to the Building Authority—

- (a) if the works as completed are different from those shown in the prescribed plans and details referred to in section 33(c), the revised prescribed plans and details showing the works as completed;
- (b) photographs showing the works as completed; and
- (c) a certificate in the specified form, in which the contractor—
 - (i) has certified that the works have been carried out in accordance with the Ordinance and the prescribed plans and details referred to in paragraph (a) or section 33(c);
 - (ii) has confirmed the date on which the works were completed; and
 - (iii) has certified that any land or street affected by the works has an adequate margin of safety and any structure remaining on the premises is structurally safe in the opinion of the contractor.

Division 4—Requirements in respect of Class III Minor Works**36. Documents to be submitted on completion of class III minor works**

Within 14 days after the date of completion of any class III minor works, the prescribed registered contractor appointed under section 28 in respect of the works must submit to the Building Authority—

- (a) a notification in the specified form, in which—
 - (i) the person who arranged for the works to be carried out has specified the contractor as the prescribed registered contractor appointed under section 28 in respect of the works;
 - (ii) the contractor has confirmed the appointment and the dates on which the works were commenced and completed;
 - (iii) the contractor has certified that the works have been carried out in accordance with the Ordinance and the plans or description of works referred to in paragraph (b);
 - (iv) if the contractor is a registered minor works contractor registered under section 11, the contractor has certified that the contractor has personally carried out the works; and
 - (v) if the works involve the erection of a signboard, the person for whom the signboard is to be erected has provided the particulars of the person as required by the Authority;
- (b) the plans or description of works showing the works as completed; and
- (c) photographs showing the physical condition of the premises immediately before the commencement and after the completion of the works.

Division 5—Plans

37. Plans etc. to be signed by person preparing them

- (1) All prescribed plans and details of class I minor works required to be submitted under this Part must be prepared and signed by—

- (a) in the case of foundation plans, structural details or calculations for—
 - (i) any class I minor works specified in subsection (4), the authorized person or registered structural engineer appointed under section 27 in respect of the works;
 - (ii) any class I minor works other than those specified in subsection (4), the registered structural engineer appointed under section 27 in respect of the works;
 - (b) in the case of geotechnical plans, geotechnical assessment, geotechnical details or calculations and geotechnical reports, the registered geotechnical engineer appointed under section 27 in respect of the works;
 - (c) in any other case, the authorized person or registered inspector appointed under section 27 in respect of the works. (*L.N. 148 of 2011*)
- (2) All prescribed plans and details of class II minor works and plans of class III minor works required to be submitted under this Part must be prepared and signed by the prescribed registered contractor appointed under section 28 in respect of the works.
- (3) The person who has signed the prescribed plans and details or plans under subsection (1) or (2) is regarded as having agreed to assume all responsibilities under the Ordinance regarding the prescribed plans and details or plans.
- (4) Class I minor works that satisfy the following criteria are specified for the purposes of subsection (1)(a)—
 - (a) the height of the construction does not exceed 10 m;
 - (b) the span of any structural element of the construction does not exceed 6 m;

- (c) the structural elements are constructed of timber, masonry, steel, plain concrete or reinforced concrete;
- (d) the foundations of the construction are of the spread footing type with a ground bearing pressure not exceeding 300 kPa and founded at not more than 2 m below existing ground level; and
- (e) there is no structural alteration to any existing structural elements designed by a registered structural engineer.

38. Ratio of plans

- (1) Every plan and section of minor works required to be submitted under this Part must be drawn to a ratio of not less than 1:100.
- (2) Every block plan of minor works required to be submitted under this Part must be drawn to a ratio of not less than 1:500.

39. Plans to be clear and material of plan

- (1) Every plan of minor works required to be submitted under this Part must be drawn or reproduced— (*L.N. 223 of 2021*)
 - (a) in a clear and intelligible manner; and
 - (b) if submitted in hard copy form—on a suitable and durable material. (*L.N. 223 of 2021*)
- (2) Every plan of minor works required to be submitted under this Part must be so coloured as to clearly differentiate—
 - (a) existing works from new works; and
 - (b) one part of any new works from the other parts of the new works.
- (3) In this section—

Building (Minor Works) Regulation

Part 6—Division 5

6-22

Section 39

Cap. 123N

hard copy form (印本形式) means a paper form or similar form capable of being read without the aid of any equipment.
(*L.N. 223 of 2021*)
